

U.S. DEPARTMENT OF AGRICULTURE
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1. PURPOSE

- a) This Departmental Manual (DM) identifies the processes to be used by the United States Department of Agriculture (USDA) for implementing Section 508 of the *Rehabilitation Act of 1973*, [29 United States Code \(U.S.C.\) § 794d](#), as amended by the *Workforce Investment Act of 1998*, [Public Law \(P.L.\) 105-220](#).

- b) USDA is committed to maintaining its conformance to the Section 508 regulation for all information and communications technology (ICT). USDA is also committed to ensuring that its services are accessible to persons with disabilities.

2. SCOPE

This DM applies to all USDA Mission Area, agency, and staff office employees, appointees, and others working for, or on behalf of, USDA.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a) This DM must be used along with Departmental Regulation [\(DR\) 4030-001](#), *Section 508 Program*. The DR establishes USDA's requirements to develop, maintain, procure, and use ICT that meet the Section 508 requirements as determined by the [United States Access Board](#) (Access Board) and the General Services Administration (GSA). The DR also details USDA's requirements to establish and support the USDA Section 508 Program Office.
- b) This DM will not be interpreted to conflict with the rights of an employee under the law, including:
 - 1) The Federal Service Labor-Management Relations Statute ([5 U.S.C. 7101-7135](#));
 - 2) Applicable collective bargaining agreements;
 - 3) Those provisions of [Chapter 75 of Title 5](#) of U.S.C. relating to disciplinary action of employees;
 - 4) The *Whistleblower Protection Act of 1989* ([WPA](#)); and
 - 5) The *Whistleblower Protection Enhancement Act of 2012* ([WPEA](#)).
- c) Additionally, this DM will not be interpreted to conflict with any rights accorded to a union representative under the Federal Service Labor-Management Relations Statute when communicating as a union representative. Further, it is recognized that the implementation of this DM may be subject to collective bargaining, the results of which may modify the policy and/or procedures stated or implied herein, as permitted by law.

4. ROLES AND RESPONSIBILITIES

The roles and responsibilities outlined in DR 4030-001, Section 11, apply to this DM.

5. PROCEDURES

- A) USDA is committed to ensuring that all ICT is accessible to individuals with disabilities. Pursuant to Section 508, conformance to these standards is mandatory for all Federal agencies.
- B) The processes in this document must be used to provide both employees and members of the public with equivalent access to and use of USDA information and services.
- C) See Section 12 for information on how to perform market research.
- D) See Section 13 for information on how to purchase ICT.
- E) See Section 14 for information on how to file for an exception.
- F) See Section 15 for information on how to file a complaint.

6. LEGAL REQUIREMENTS

Conformance to the [*Information and Communication Technology Revised 508 Standards and 255 Guidelines*](#) for ICT products and services is mandatory for Executive Branch Federal agencies subject to Section 508. For assistance interpreting the Section 508 requirements, contact the USDA Section 508 Program Office at Section508-OCIO@usda.gov.

7. MANAGING A SECTION 508 PROGRAM

This section provides instruction to Section 508 Coordinators on how to manage the Section 508 Program within their Mission Area, agency, or staff office.

- a) Section 508 Coordinators work to improve the Section 508 compliance level of their Mission Area, agency, or staff office. They are also responsible for developing a mature Section 508 Program to manage the accessibility of ICT. For details on the roles and responsibilities of Section 508 Coordinators, see DR 4030-001, Section 10n.
- b) Mature programs monitor conformance to accessibility policies and report accurate compliance levels using conformance data. Section 508 Coordinators use conformance data to drive decision making and improve the effectiveness of the program across five Program Maturity Domains:
 - 1) Acquisition

Ensure that ICT procurement solicitations include Section 508 solicitation language in all contract vehicles and an accessibility report detailing the relevant requirements. This information is available in the Office of the Chief Information

Officer's (OCIO) internal procurement system, [AgMAX](#). For more information on ICT solicitations, see DM Section 13, *How to Purchase ICT*.

2) Technology Lifecycles

Ensure that Section 508 requirements are included in all lifecycle activities to maximize effectiveness and reduce costs. This includes, but is not limited to, enterprise architecture, design, development, testing, deployment, and ongoing maintenance activities.

3) Quality Assurance Testing

Collect a representative sample of websites and documents. The sample should consist of a variety of intranet sites, internet sites, and documents from each agency component or function. The sample size should be proportionate to the number of websites and documents in active use, as to be determined by the Section 508 Coordinator. Perform a compliance evaluation. Determine the percentage of ICT found to be compliant to the revised Section 508 standards.

4) Complaint Management

Create a clear procedure for receiving, tracking, and resolving accessibility complaints. The procedure must facilitate effective communication methods to support end users and minimize costs. Once a complaint arrives, accessibility professionals validate accessibility defects. Then they manage resource planning decisions.

5) Training

Provide role-based training for employees to understand their responsibilities towards accessibility. Relevant roles include, but are not limited to, web and software developers, acquisition professionals, forms managers, human resource employees, and communications specialists.

- c) Program Maturity Domains each receive a Program Maturity Level as determined by the conformance data. Each Program Maturity Level has an associated Maturity Measure used to calculate the overall conformance of USDA.

d) Calculating Program Maturity

1) Step One, Assign Program Maturity Levels

The Section 508 Coordinator must assign a Program Maturity Level and corresponding Maturity Measure to each Program Maturity Domain for the Mission Area, agency, or staff office. They do this using the criteria in Table 1, *Program*

Maturity Levels. The objective is to have a “Measured” Program Maturity Level across all Program Maturity Domains.

Table 1: Program Maturity Levels

<i>Program Maturity Level</i>	Description	Maturity Measure
Ad Hoc	No established framework exists for the consistent management of Section 508 compliance requirements.	1
Planned	There are established policies, processes, and procedures for Section 508 compliance defined and communicated.	2
Resourced	There are committed resources or staff trained to implement policies, processes, and procedures for Section 508 compliance. Executive Leadership understands, supports, and effectively implements the Section 508 policies and procedures.	3
Measured	Section 508 compliance metrics are monitored. USDA validates its digital services and ICT solutions to ensure that they conform to the revised Section 508 standards. Measured program effectiveness helps to reduce risk and prioritizes program improvement.	4

2) Step Two, Determine Section 508 Compliance

The Section 508 Coordinator must collect a representative sample of internet and intranet USDA sites within their Mission Area, agency, or staff office. Determine the Section 508 compliance of each category. Automated accessibility tools are permitted. Calculate the following metrics:

- (a) The number of internet sites evaluated and the percentage that conform to the revised Section 508 standards.
- (b) The number of intranet sites evaluated and the percentage that conform to the revised Section 508 standards.
- (c) The total number of internet and intranet sites evaluated and the percentage that conform to the revised Section 508 standards.

e) Reporting Requirements

- 1) Section 508 Coordinators must complete a Program Maturity report for their Mission Area, agency, or staff office. The Section 508 Program Manager collects these reports and calculates USDA's overall compliance score. The score and supporting documentation are sent to the CIO for review prior to submission. Submit this information to the Office of Management and Budget (OMB) twice annually. Submit it to the Department of Justice (DOJ) upon request every 2 years.
- 2) To receive assistance with compliance determination or submission, email Section508-OCIO@usda.gov.

f) Managing Technology Lifecycles

Section 508 Coordinators must incorporate the revised Section 508 standards into Mission Area, agency, and staff office lifecycle activities to maximize effectiveness and reduce cost. The Project Manager (PM) will perform activities during each phase as follows:

- 1) Project Planning
 - (a) Consider accessibility needs during investment decisions;
 - (b) Determine whether the ICT creates accessibility barriers; and
 - (c) Allocate time and funding to address accessibility issues.
- 2) Requirements Gathering and Design
 - (a) Identify the needs of disabled users and ensure human-centric design;
 - (b) Identify the applicable standards for the ICT and associated electronic content;
 - (c) Include accessibility when considering alternative solutions;
 - (d) Address pre-existing accessibility issues when prioritizing technology enhancements;
 - (e) Validate solution designs and prototypes with disabled users; and
 - (f) Include accessibility requirements during each sprint when performing the agile development methodology to promote early discovery of accessibility issues.
- 3) Development
 - (a) Train developers to understand the rationale and importance of Section 508;

- (b) Provide access to testing tools to allow developers to test their ICT in-house;
- (c) Encourage the use of accessible code libraries; and
- (d) Ensure that agreements on open-source software address compliance responsibilities.

4) Testing and Quality Assurance

- (a) Select accessibility testing methods consistent with the [Section 508 requirements outlined by the Access Board](#);
- (b) Ensure that accessibility requirements are met in unit tests;
- (c) Identify where accessibility issues are located and troubleshoot potential root causes; and
- (d) Track accessibility bug fixes and their resolution status.

5) Deployment, Operations, and Maintenance

- (a) Ensure that configuration and integration activities do not introduce new accessibility barriers;
- (b) Perform accessibility testing prior to publishing updates; and
- (c) Consistently monitor the ICT environment for accessibility issues.

8. SECTION 508 AWARENESS TRAINING

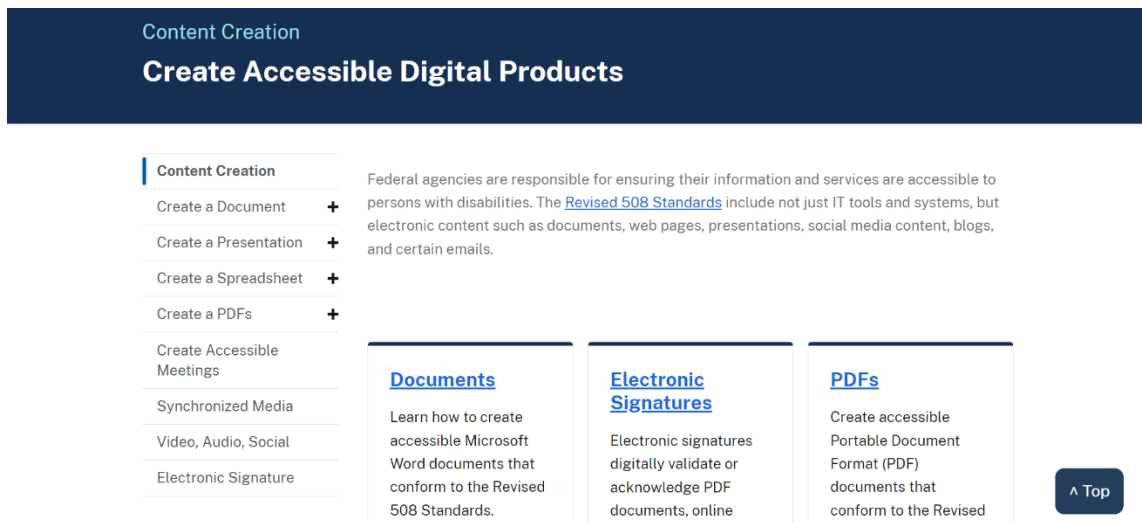
- a) All USDA employees and contractors must complete the Section 508 Awareness Training in [AgLearn+](#) unless otherwise specified. Employees and contractors receive an email notification 45 calendar days before their training is due.
- b) The USDA Section 508 Program provides monthly training to USDA's Federal employees and contractors. Training opportunities are announced via OCIO's internal broadcasts. In addition, Section 508 Coordinators provide role-based training to groups and individuals on Section 508 and its related subject matters. Section 508 training topics include but are not limited to:
 - 1) Coordinator Orientation Training;
 - 2) Section 508 Governance and Policy;
 - 3) Performing Market Research for Accessible ICT;

- 4) Accessible Document Creation and Remediation;
 - 5) Accessibility Testing Methodologies; and
 - 6) Disability Awareness for Service Desks.
- c) USDA employees and contractors may contact their designated Section 508 Coordinator to schedule individual and group training.

9. ACCESSIBLE DOCUMENTATION

- a) In accordance with Access Board's [Chapter 6: Support Documentation and Services](#) of the revised Section 508 standards, USDA employees and contractors must provide accessible information and services.
- b) Electronic documents must include built-in accessibility features. They must be compatible with assistive technology (AT). They must conform to the most current Level A and Level AA Success Criteria under the [Web Content Accessibility Guidelines \(WCAG\)](#) where applicable.
- c) Federal employees and contractors must create and remediate accessible documentation. Asking other Federal employees (including the Section 508 Coordinator) to remediate documentation is prohibited. However, Mission Areas, agencies, and staff offices may purchase contract support services to assist with remediation.
- d) Archived and print documents must be made compliant prior to electronic distribution.
- e) The Accessible Electronic Documentation Community of Practice (AED CoP) provides document remediation training videos demonstrating accessibility remediation across various document types. This information appears on GSA's [Create Accessible Digital Products](#) web page. See Figure 1, *Screenshot of the Create Accessible Digital Products web page*.

Figure 1: Screenshot of the Create Accessible Digital Products web page



- f) The Section 508 Program Manager provides detailed document remediation checklists to guide content creators. To view and download the checklists, visit the OCIO's [Section 508 Checklists](#) website.

10. ACCESSIBLE WEB DESIGN AND DEVELOPMENT

- a) The [USDA Style Guide](#) includes best practices to help employees and contractors produce effective and consistent communication materials across all USDA sites. For more information, visit the USDA's [Accessibility](#) web page.
- b) In addition to the *USDA Style Guide*, USDA follows the guidance provided by the GSA Section 508 Program on accessible web design and development. The GSA Federal Section 508 website provides a [Guide to Accessible Web Design and Development](#). This guide summarizes critical WCAG requirements, highlights best practices, and provides code examples.

11. ACCESSIBILITY TESTING

- a) Mission Areas, agencies, and staff offices must dedicate resources for accessibility testing and ICT remediation. Section 508 Coordinators and their staff may perform accessibility testing upon request. They may request support from another Mission Area, agency, or staff office. They may procure support services.
- b) Project and Program Managers may request accessibility testing services for their ICT. They must include the name and version of the ICT, access information, test credentials,

test scripts, and any other relevant information. Send service requests to the Mission Area, agency, or staff office Section 508 Coordinator.

c) Automated, Manual, and Hybrid Testing

- 1) Automated testing involves the use of high-volume Section 508 conformance tools to scan and test electronic content. In addition to installation and configuration, the tool must allow customizable accessibility rulesets, scans, and reporting or monitoring capabilities.
- 2) Automated tools must be purchased with support services. Support services should include online self-paced training for its users, tool integration with testing environments, and ongoing maintenance activities.

(a) At a minimum, automated tools should provide:

- 1 The ability to scan high volumes of electronic content in all formats;
- 2 Both standard and customizable ruleset parameters for test administrators;
- 3 Early detection and remediation of false positives;
- 4 Categorization issues by type, frequency, and severity;
- 5 Exportable and customizable reports;
- 6 Trend analysis by website and Mission Area, agency, or staff office;
- 7 Directions to specific code locations where errors are generated; and
- 8 Contextually relevant remediation guidance.

(b) Visit GSA's [*Automated Testing*](#) web page for more technical criteria.

3) Before using automated tools, be aware of their limitations:

- (a) Automated tools may either produce excessive false positives or test for only a small portion of the requirements. The vendor must define and quantify the method and accuracy of its rulesets regarding their alignment with your standards;
- (b) Server-based tools may not be able to access content secured behind firewalls or otherwise protected content;

- (c) Automated tools often convert documents into Hypertext Markup Language (HTML) files prior to testing. An automated tool should be capable of testing documents in their native format;
 - (d) Multiple types of automated tools are often necessary to cover multiple content types; and
 - (e) Automated tools provide outputs relevant to developers, but typically do not integrate test results into dashboard reporting for other organizational uses.
- 4) Key Success Factor: To effectively improve accessibility for the Mission Area, agency, or staff office and support the highest level of accessibility improvement, the tools must be useful across multiple applicable roles. These include User Experience (UX) designers, developers, quality assurance testers, etc.
 - 5) Manual testing involves the use of several assistive technologies to validate accessibility. This method allows for human subjectivity. It is ideal for software and web-based solutions.
 - 6) Manual testing procedures must align with the Access Board's [Section 508 ICT Testing Baseline](#). The baseline covers critical accessibility requirements, how to test each criterion, and the rationale behind the testing methodology or tool. The Department of Homeland Security (DHS) [Section 508 Trusted Tester Conformance Test Process Version 5](#) establishes manual test approach used within USDA.
 - 7) Hybrid testing requires the use of both manual and automated testing methods. Developers integrate hybrid testing into ICT development lifecycles. Automated tools identify common accessibility errors. Manual testing occurs with each major development milestone and prior to deployment.
 - 8) For more information on the testing methodologies used within your Mission Area, agency, or staff office, contact your Section 508 Coordinator.

12. MARKET RESEARCH

- a) Market research is the process to determine the feasibility of potential ICT products and services based on the purchaser's requirements.
- b) All ICT solutions and services within USDA must adhere to their respective accessibility requirements. When purchasing or developing an ICT solution, these accessibility requirements must be included within a well-defined business needs statement.
- c) When only inaccessible solutions meet the business need, USDA and its components must procure the ICT solution that best meets the accessibility standards and the business need, as determined by the PM. This requirement is detailed in the Access Board's

Section E202.7: Best Meets in the Information and Communication Technology Revised 508 Standards and 255 Guidelines.

- d) Mission Areas, agencies, and staff offices must also provide an alternate means of accessing the information or functions supported by the ICT to mitigate any accessibility gaps.

- 1) Failure to include the applicable Section 508 technical requirements may result in:

- (a) An increased risk of schedule and cost overruns for the project;
- (b) Additional remediation costs post-delivery; and
- (c) An increased risk of litigation against the USDA.

- 2) Section 508 procurement is enforced through the [*Federal Acquisition Regulation*](#) (FAR), 48 Code of Federal Regulations (CFR). The FAR governs each of the procurement phases: Pre-Award, Award, and Post-Award.

- e) Step One, Pre-Award Phase

The PM determines the applicable accessibility requirements.

- 1) Use GSA's [*Accessibility Requirements Tool \(ART\)*](#) to determine the applicable Section 508 requirements for the ICT solution.
- 2) Determine the applicable Section 508 requirements. Determine whether a potential ICT solution qualifies for an exception. Approved exception requests typically do not cover the entirety of the ICT. Include the applicable accessibility criteria for components unqualified for an exception. See Section 14, *How to File for an Exception* of this DM for more details.

- f) Step Two, Pre-Award Phase

Perform market research for accessible ICT solutions or services.

- 1) To procure accessible ICT products and solutions that meet the business need, the PM must perform market research. Collect and analyze the Accessibility Conformance Reports (ACR) of all potential solutions from their respective vendors.
- 2) ACRs must, at a minimum, provide the following compliance information for all applicable standards:
 - (a) The compliance level for each applicable criterion;

- (b) The testing methodologies and tools used to determine the compliance level; and
 - (c) The identification of critical accessibility defects, also known as “show-stopper issues.” “Show-stopper issues” are accessibility deficiencies that make the ICT unusable for people with disabilities.
- 3) To procure contractor support and accessibility services, PMs must collect and analyze Contractor Capability Statements (CCS). Contractors must demonstrate their Section 508 expertise across several risk factors. The PM must determine a contractor’s risk of noncompliance. These risk factors appear in Table 2, *CCS Risk Factor Analysis*.

Table 1: CCS Risk Factor Analysis

<i>Risk Factor</i>	Low Risk	Medium Risk	High Risk
Policy	Provides comprehensive policy statement.	Provides basic statement acknowledging Section 508.	No accessibility commitment provided.
Testing Methods	Mentions use of DHS Test Process (e.g., Trusted Tester).	Mentions that they test for Section 508, but no details.	No mention of accessibility testing.
Subject Matter Expertise	Mentions access to a large team of accessibility experts.	Mentions Section 508 expertise, but no details.	No mention of Section 508 expertise.
Processes	Mentions Section 508 planning, development, and testing activities.	Mentions that Section 508 testing is performed, but no details.	No mention of Section 508 processes.
Past Performance	Mentions extensive relative Section 508 past performance.	Mentions some Section 508 past performance.	No mention of Section 508 past performance.

- 4) The PM must determine which contractors are most capable of adhering to the applicable standards and providing support services.
- 5) PMs are required to complete a justification statement pertaining to the selected ICT. Justification statements detail why an ICT solution was accepted. They also detail why the other potential solutions were not accepted.

- 6) Whenever an accessible ICT solution is unavailable in the current commercial marketplace, Mission Areas, agencies, and staff offices can procure development services. PMs must perform market research for vendors or contractors with experience developing accessible solutions.

g) Step Three, Pre-Award Phase

Develop solicitation language for acquisition packages.

- 1) The USDA Section 508 Program Manager provides pre-approved solicitation language for acquisition packages. The Section 508 solicitation language must appear in all requirements documents and contract vehicles.
- 2) For more information on solicitation language, see Section 13 of this DM.

h) Step Four, Pre-Award Phase

Request accessibility information from vendors.

- 1) Based on the conformance level determined by the ACR, vendors must provide a remediation plan for commercial or Government off-the-shelf (COTS or GOTS) products and services.
- 2) Conduct these activities prior to receipt by the Mission Area, agency, or staff office.

i) Step Five, Award Phase

Evaluate vendor proposals.

Prior to contract award, the PM must validate vendor claims against the relevant Section 508 and WCAG requirements. The ICT must meet the compliance standards prior to deployment. Vendors must remediate accessibility defects as they are discovered.

j) Step Six, Post-Award Phase

Validate Section 508 compliance.

- 1) Perform accessibility testing to determine the current compliance level. PMs may perform accessibility testing in-house, or request services from their Section 508 Coordinator. The accessibility testing protocol must align with Access Boards's [*Section 508 ICT Testing Baseline*](#);
- 2) PMs must retest the ICT throughout the operations and maintenance phase; and
- 3) For more information on accessibility testing, see Section 11 of this DM.

k) Market Research Instructions for Section 508 Coordinators

1) Step One, Determine ACR Completeness

Determine whether the ACR is complete.

Section 508 Coordinators assisting PMs to evaluate product ACRs should consider the following guidelines:

- (a) Ensure that the ACR was developed by either the vendor or an approved third party;
- (b) Ensure that the ACR covers the correct product, version, and substantive release;
- (c) Ensure that the ACR includes all applicable requirements, their respective accessibility ratings, and the justification;
- (d) Ensure that the ACR includes the methods and tools used to evaluate the ICT;
- (e) Ensure that the ACR includes configuration guidelines, accessibility workarounds, and how to request accessibility services;
- (f) Determine whether the compliance level meets or exceeds the requirements defined in the solicitation language;
- (g) Document insufficient responses to send to the vendor. Remove the vendor's solution from consideration when a sufficient response is not provided; and
- (h) Ensure that incomplete ACRs are not used to make an award decision.

2) Step Two, Identify Showstopper Issues

Determine whether there are any "showstopper issues."

- (a) The presence of showstopper issues makes ACRs unsatisfactory.
- (b) Some examples of showstopper issues include:
 - 1 Software that disrupts AT or accessibility features;
 - 2 Software that requires the use of a mouse;
 - 3 Hardware with flashing lights faster than the light sensitivity threshold allows; and

4 Product manuals that are unreadable by AT.

3) Step Three, Assess Accuracy of Conformance Claims

Assess the accuracy of the conformance claims.

- (a) When evaluating conformance claims, use the guidelines in Table 3, *Conformance Claim Legend*.

Table 2: Conformance Claim Legend

<i>Conformance Claim</i>	<i>Requirement</i>
Supports	The functionality of the product has at least one method that meets the criterion without known defects or meets the equivalent facilitation.
Partially Supports or Supports with Exceptions	Some of the functionality of the product does not fully comply to the criterion.
Does Not Support	Most of the functionality does not meet the criterion.
Not Applicable	The criterion is not relevant to the product.
<i>Not Evaluated</i>	The product has not been evaluated.

- (b) Section 508 Coordinators are required to adjust a conformance claim downwards in the following cases:
- 1 If it was determined that the conformance claim is inaccurate in its current state; or
 - 2 If there is an inadequate, missing, or irrelevant explanation found in the Remarks and Explanations section within the ACR.

4) Step Four, Compliance Score and Rating

Calculate the ACR's Compliance Score and assign a Compliance Rating.

- (a) Using the following equation, calculate the Compliance Score to the ACR:

$(\# \text{ of criterion rated "Partially Supports"} \times 0.5) + (\# \text{ of criterion rated "Does not Support" or "Not Evaluated"}) = \text{Compliance Score}$

- (b) Determine the Compliance Rating using Table 4, *Compliance Rating Legend*.

Table 3: Compliance Rating Legend

Compliance Score	Compliance Rating
Less than 5	Superior. The ICT substantially meets all applicable standards.
Between 5 and 9.5	Satisfactory. Requires minimal remediation.
Between 10 and 14.5	Marginal. Meets few of the applicable standards. Remediation or an alternative access solution is required.
Greater than 15	Unsatisfactory. Fails to meet the applicable standards. Remediation or an alternative ICT solution is required.

- (c) Incomplete ACRs automatically receive an Unsatisfactory compliance rating. For USDA and its components, only ACRs that receive a Superior or Satisfactory Compliance Rating can be accepted to justify the purchase of ICT.

13. HOW TO PURCHASE ICT

This section details the ICT procurement procedure through OCIO's Capital Planning and Investment Control (CPIC) Acquisition Approval Request (AAR) process referenced in [DR 3130-013](#), *Information Technology Capital Planning and Investment Control*, and in *AgMAX*.

a) Legal Requirements

The revised Section 508 standards apply to all ICT contract vehicles and procurement actions, including micro-purchases. Section 508 has been incorporated into [48 CFR Chapter 1](#), *Federal Acquisition Regulation*, and the [Agriculture Acquisition Regulation \(AGAR\)](#).

b) Building an Acquisition Package

This section only covers the Section 508 requirements for acquisition packages. Contact the CPIC Service Desk at CapitalPlanningDivision@usda.gov for the full list of

requirements. Follow the steps below to receive approval for ICT purchase requests under Section 508:

1) Step One, Ensure All ICT Included

Ensure that all ICT in the acquisition package is included in a contract vehicle. The contract vehicle must also include the Section 508 solicitation language provided by USDA. When purchasing from a Blanket Purchase Agreement (BPA), Interagency Agreement (IAA), or National Aeronautics and Space Administration *Solutions for Enterprise-Wide Procurement* ([NASA SEWP](#)) contracting vehicle, ensure that the pre-approved solicitation language appears as an addendum.

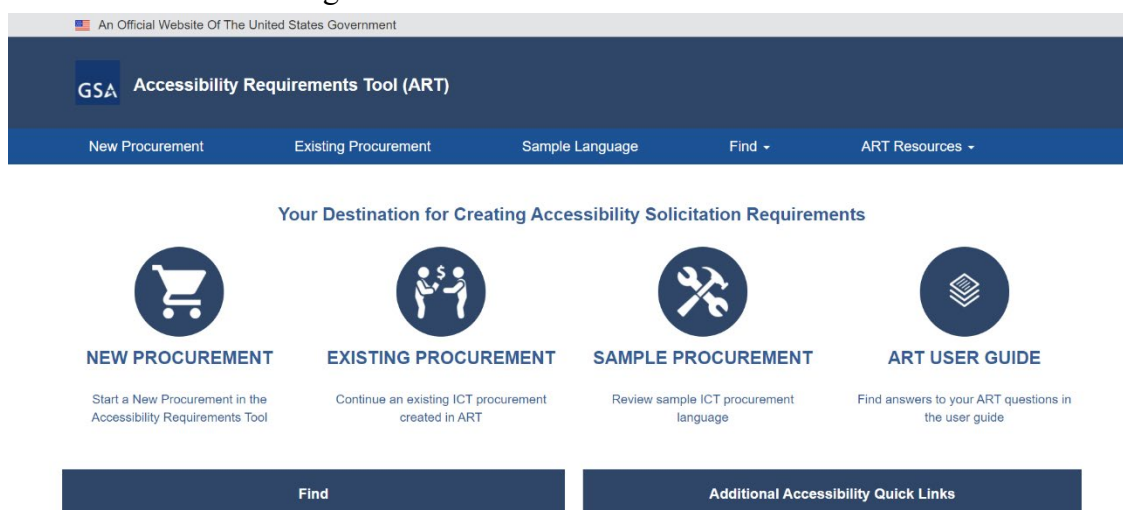
2) Step Two, Provide ACR or VPAT

Provide an ACR or Information Technology Industry (ITI) Voluntary Product Assessment Template ([VPAT](#)) for each product or service. Like the ACR, VPATs detail the results of in-house accessibility testing by the vendor.

3) Step Three, Generate Accessibility Requirements

Using the *ART*, generate an Accessibility Requirements document that covers the applicable Section 508 provisions and exceptions for all ICT. Contact your Mission Area, agency, or staff office Section 508 Coordinator for assistance. If a single report cannot cover all ICT items, multiple reports can be generated and attached to the acquisition package. See Figure 2, *Screenshot of the ART*.

Figure 2: Screenshot of the ART



4) Step Four, Provide Additional Artifacts

Where applicable, provide these additional artifacts:

- (a) An approved Exception Request covering at least one ICT product or service; and
- (b) A Remediation Plan.

5) Step Five, Submit Acquisition Package

Submit the acquisition package to the agency liaison in OCIO's Capital Planning and Information Technology Governance Division (CPITGD).

- (a) CPITGD will perform a preliminary review before the Section 508 Coordinator performs their review. The review period is 5 business days.
- (b) Each AAR has a trackable review status in *AgMAX* that consists of one of the following:
 - 1 Pending Subject Matter Expert (SME) Acknowledgement: The Section 508 SME has yet to acknowledge receipt of the AAR package;
 - 2 Review Under Way: The Section 508 SME is currently in the process of reviewing the AAR package;
 - 3 Awaiting Agency Feedback: The Section 508 SME has found an issue with one or more of the artifacts and is requesting a correction;
 - a Approved: The Section 508 SME approves the AAR package. Packages that receive Approval from each SME are submitted to an Approving Official; or
 - b Disapproved: The Section 508 SME disapproves the AAR package. Disapproval of the AAR requires the acquisition package to be resubmitted to CPIC.

6) Step Six, Maintain Procurement Package Documentation

Maintain your procurement package documentation in accordance with Federal recordkeeping requirements to use during renewals and option years.

c) Frequently Asked Questions

- 1) Question: Are emergency AARs exempt from Section 508?

Answer: No, all AARs must comply to the revised Section 508 standards.

2) Question: How do I address Section 508 for ICT license renewals and option years?

Answer: Incorporate updated documentation within your acquisition package to receive approval for ICT license renewals and option years.

3) Question: What if the ICT acquisition package does not include a contract vehicle?

Answer: A requirements document must be developed for the acquisition and include the Section 508 solicitation language.

4) Question: When purchasing from another Mission Area, agency, or staff office's contract vehicle, who is responsible for ensuring Section 508 compliance?

Answer: The purchasing Mission Area, agency, or staff office is responsible for submitting the appropriate Section 508 artifacts in addition to the ICT solution's Section 508 compliance.

14. HOW TO FILE FOR AN EXCEPTION

Section 508 exceptions cover specific circumstances where the acquisition or use of inaccessible ICT is necessary. These circumstances are covered in the Access Board's [*508 Chapter 2: Scoping Requirements*](#) in the *Information and Communication Technology Revised 508 Standards and 255 Guidelines*.

a) Exception Types

1) Back Office Equipment Exception

ICT will not be required to conform to the revised Section 508 standards when status indicators and operable parts for ICT functions are in spaces frequented only by the service provider for maintenance, repair, or occasional monitoring of equipment.

2) Commercial Non-Availability Exception

When ICT conforming to one or more requirements in the revised Section 508 standards is not commercially available, the Mission Area, agency, or staff office will procure the ICT that best meets the revised Section 508 standards consistent with the business need.

3) Federal Contracts Exception

ICT acquired by a contractor incidental to a contract will not be required to conform to the revised Section 508 standards. This exception may only be claimed by Federal agencies and their components.

4) Fundamental Alteration Exception

This exception applies if bringing an existing ICT into compliance with the revised Section 508 standards would result in a fundamental alteration in the nature of the ICT.

5) Legacy ICT Exception

If the existing ICT conforms to the previous Section 508 standards and has not been altered on or after January 18, 2018, the ICT is not required to conform to the revised Section 508 standards.

6) National Security Systems Exception

The revised Section 508 standards do not apply to ICT operated by Federal agencies as part of a national security system, as defined by [40 U.S.C. § 11103\(a\)](#).

7) Undue Burden Exception

This exception applies if bringing an existing ICT into compliance with the revised Section 508 standards would impose an undue burden on the USDA as a whole and its functions.

b) How to Qualify

- 1) Each exception type comes with requirements that can be used in exception determination. Table 5, *Exceptions*, describes the requirements to qualify for each exception type.

Table 4: Exceptions

<i>Exception Type</i>	How to Qualify	Examples of Qualifying ICT
Back Office Equipment Exception	ICT must require human interaction for maintenance, repair, or occasional monitoring of equipment.	Routers, mainframes, server equipment, etc.
Commercial Non-Availability Exception	When ICT meeting the business need does not currently exist in the commercial marketplace, the PM must provide evidence through market research.	Highly specialized or unique software systems.
Federal Contracts Exception	The ICT was purchased by a vendor or contractor for their use, and they will maintain ownership upon completion of the contract.	A contractor's laptop acquired prior to contracting with the Federal government.
Fundamental Alteration Exception	The PM must demonstrate that remediating the ICT would result in a fundamental alteration in the nature of the ICT.	Geospatial software that tracks wildfires with live data feeds.
Legacy ICT Exception	The ICT was deemed compliant by a Federal testing center to the Section 508 standards prior to January 18, 2018. Additionally, the ICT was not maintained, upgraded, or modified since. Modifications include but are not limited to interoperability and user interface changes, data and information access changes, etc.	Websites whose user interface and information has not been altered since the Revised Section 508 standards were mandated.
National Security Systems Exception	The ICT is operated by USDA as part of a national security system.	Cybersecurity systems within the military.

<i>Exception Type</i>	<i>How to Qualify</i>	<i>Examples of Qualifying ICT</i>
Undue Burden Exception	The PM must demonstrate that bringing the ICT into conformance imposes significant difficulty or expense considering USDA's available resources to the program or component for which the ICT is to be procured.	USDA's back-end payroll system. Remediation would require halting USDA and its functions.

- 2) If you are unsure whether one of these exceptions applies to your ICT, utilize the *ART*.

c) Required Documentation

- 1) Exceptions may require supplemental documentation, such as remediation plans and proof of market research.
- 2) The Commercial Non-Availability, Fundamental Alteration, and Undue Burden Exceptions always require remediation plans and proof of market research. The remediation period cannot exceed 60 calendar days from the evaluation date for web-based applications, multimedia, websites, and training materials. Installable software has a remediation period of 1 calendar year.
- 3) PMs can request an exception determination and the appropriate forms from their Section 508 Coordinator. All exception requests must be submitted via the internal ticketing system.

d) Exception Renewal

- 1) Excluding the Back Office Equipment and Federal Contracts Exceptions, approved exception requests have an acceptance period of up to 1 calendar year and require annual renewal. PMs must demonstrate that the ICT has been corrected for Section 508 compliance during the acceptance period. If Section 508 compliance is not achieved, the Section 508 Official may deny the renewal.
- 2) To request a renewal, submit the newly completed exception request form and updated documentation via the internal ticketing system.

e) Risk Management for Mission Critical ICT

- 1) PMs may accept the legal risk of non-compliance and request an extension to the remediation period using a Risk Acceptance Memo (RAM) under the following conditions:

- (a) The ICT is mission critical to the agency. ICT is considered mission critical when its absence causes a work stoppage to the agency.
 - (b) The vendor has a signed agreement with the agency to bring the ICT into compliance within a 1-year period.
 - (c) The Section 508 Official or designee has approved the vendor's remediation plan.
- 2) RAMs must be submitted to the Section 508 Official or designee for review and approval prior to use.

15. HOW TO FILE A COMPLAINT

- a) The revised Section 508 standards require all Federal agencies to ensure that the ICT it develops, procures, maintains, or uses is accessible to individuals with disabilities. Section 508 authorizes individuals to file administrative complaints without alleged discrimination against the USDA through the Mission Area, agency's or staff office's Section 508 coordinator.
- b) If you believe the denial of an administrative remedy or lack of accommodation via the administrative process is based on a protected basis (such as disability), you have the right to file a discrimination complaint. Members of the public, employees, and applicants for employment with the USDA who wish to file a complaint of discrimination regarding Section 508 accessibility may file a complaint **online via the Program Discrimination Complaint Portal** [Complaint Form Portal](#); by completing the [USDA Program Discrimination Complaint Form \(English\)](#), at any USDA office by calling (866) 632-9992, or sending an email/letter to program.intake@usda.gov. Employees and applicants for employment with USDA who wish to file an Equal Employment Opportunity (EEO) complaint where noncompliance with Section 508 applies must contact an EEO Counselor that services the Mission Area, agency, or staff office that they believe discriminated against them to start the informal EEO complaint process. Follow the instructions on OASCR's web page, [Equal Employment Opportunity Complaint Filing](#).
- c) Section 508 Complaint Use Cases

1) Use Case 1, Program Discrimination Complaints

Members of the public, employees, and applicants for employment with the USDA who wish to file a USDA program discrimination complaint where noncompliance with Section 508 applies must follow the instructions on OASCR's web page, [Filing a Program Discrimination Complaint as a USDA Customer](#). Complainants should use the Agriculture Department [\(AD\) 3027](#), *USDA Program Discrimination*

Complaint Form, and submit the form via email to program.intake@usda.gov. OASCR tracks and reports all complaints with alleged discrimination.

2) Use Case 2, EEO Discrimination Complaints

- (a) Employees and applicants for employment with USDA who wish to file an Equal Employment Opportunity (EEO) complaint where noncompliance with Section 508 applies must contact an EEO Counselor that services the Mission Area, agency, or staff office that they believe discriminated against them to start the informal EEO complaint process. Follow the instructions on OASCR's web page, [Equal Employment Opportunity Complaint Filing](#).
- (b) If the informal EEO complaint is not resolved to the satisfaction of all parties with the concurrence of the EEO Counselor, the employee or applicant may file a formal EEO complaint with OASCR. Formal complaints may be submitted via the [ETK/EEO](#) portal.
- (c) OASCR tracks and reports all complaints with alleged discrimination.

3) Use Cases 3 and 4, Section 508 Noncompliance Without Alleged Discrimination

- 4) Members of the public, employees, and applicants for employment with USDA that wish to report Section 508 noncompliance without alleged discrimination must contact the managing Mission Area's, agency's, or staff office's Section 508 Coordinator, or email the USDA Section 508 Program Office at Section508-OCIO@usda.gov. Each Mission Area, agency, and Staff Office's Section 508 Coordinator manages and tracks complaints where no alleged discrimination occurred with regard to its webpages, forms, documents, links, systems, applications, or other ICT.
- d) For more information, see Appendix D, *Complaint Decision Table*.

16. INQUIRIES

Questions pertaining to this directive should be directed to the OCIO Information Resource Management Center (IRMC) USDA Section 508 Program Office via email at Section508-OCIO@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

AAR	Acquisition Approval Request
ACR	Accessibility Conformance Report
AD	Agriculture Department (Departmental Form number prefix)
AED CoP	Accessible Electronic Documentation Community of Practice
AGAR	Agriculture Acquisition Regulation
ART	Accessibility Requirements Tool
AT	Assistive Technology
BPA	Blanket Purchase Agreement
CCS	Contractor Capability Statement
CFR	Code of Federal Regulations
COTS	Commercial Off-The-Shelf
CPIC	Capital Planning and Investment Control
DG	Departmental Guidebook
DHS	Department of Homeland Security
DM	Departmental Manual
DOJ	Department of Justice
DR	Departmental Regulation
EEO	Equal Employment Opportunity
FAR	Federal Acquisition Regulation
GOTS	Government Off-The-Shelf
GSA	General Services Administration
HTML	Hypertext Markup Language
IA	Interagency Agreement
ICT	Information and Communications Technology
IDIQ	Indefinite Delivery Indefinite Quantity
IRMC	Information Resource Management Center (OCIO component)
IT	Information Technology
ITI	Information Technology Industry
NASA	National Aeronautics and Space Administration
NASA-SEWP	National Aeronautics and Space Administration Solutions for Enterprise-Wide Procurement
OASCR	Office of the Assistant Secretary for Civil Rights
OCIO	Office of the Chief Information Officer
OMB	Office of Management and Budget
P.L.	Public Law
PM	Project Manager
PWS	Performance Work Schedule
RAM	Risk Acceptance Memo
SME	Subject Matter Expert
U.S.C.	United States Code
USDA	United States Department of Agriculture
UX	User Experience

VPAT	Voluntary Product Assessment Template
W3C	World Wide Web Consortium
WAI	Web Accessibility Initiative
WCAG	Web Content Accessibility Guidelines

APPENDIX B

DEFINITIONS

Access Board. The U.S. Access Board is an independent Federal agency that promotes equality for people with disabilities through leadership in accessible design and the development of accessibility guidelines and standards. (Source: *Access Board*)

Accessibility Conformance Report (ACR). A document completed by a vendor or contractor that provides detailed compliance information to all applicable standards. This includes the use of an acceptable testing methodology (e.g., manual testing, DHS Trusted Tester) and the identification of critical accessibility defects (show-stopper issues). Also referred to as a Voluntary Product Assessment Template (VPAT). (Source: ITI, *VPAT*)

Accessibility Requirements Tool (ART). A step-by-step guide to help easily identify relevant accessibility requirements from the revised Section 508 standards, and incorporate them into procurement and contracting documentation, as well as in-house information technology (IT) development. GSA's IT Accessibility Program developed ART as part of its mission to provide technical assistance to Federal agencies, to improve compliance with [*Section 508 of the Rehabilitation Act of 1973*](#).

Agency. Organizational units of the Department, other than staff offices, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary. (Source: USDA, [*Departmental Guidebook \(DG\) 0100-002*](#), *USDA Departmental Directives Definitions Glossary*)

Assistive Technology (AT). Any item, piece of equipment, or product system, whether acquired commercially, modified, or customized, used to increase, maintain, or improve the functional capabilities of individuals with disabilities. (Source: *Access Board*)

Contractor Capability Statement (CCS). A document provided by a contractor or collected when performing market research for contract support and services. The document details the contractor's knowledge on Section 508 governance and policy, accessibility testing methodologies, ICT lifecycle processes, and general subject matter expertise. Contractors must also demonstrate prior performance information for Section 508 related activities.

Commercial Off-The-Shelf (COTS). A product or service offered by a vendor with minimal customization and support services offered to the purchaser.

Federal Acquisition Regulation (FAR). A set of principles that govern the Government procurement process. It regulates purchasing of goods and services by the Government. (Source: *Federal Acquisition Regulation*)

Final Rule. A document issued by the U.S. Access Board detailing updated requirements for information and communication technology covered by Section 508 of the *Rehabilitation Act*

and Section 255 of the *Communications Act* ([47 U.S.C. § 255](#), *Access by Persons with Disabilities*). These updates to the Section 508 standards and Section 255 guidelines are in response to market trends and innovations, such as the convergence of technologies. (Source: *Access Board*)

Government Off-The-Shelf (GOTS). A product or service offered by a Federal agency with minimal customization and support services offered to the purchaser.

Information and Communication Technology (ICT). A term for IT that stresses the role of unified communications and the integration of telecommunications (telephone lines and wireless signals) and computers, as well as necessary enterprise software, middleware, storage, and all electronic and information technology. (Source: *Access Board*)

Micro-purchases. As defined in the FAR 2.101, a micro-purchase is an acquisition of supplies or services using simplified acquisition procedures, the aggregate amount of which does not exceed the micro-purchase threshold. (Source: FAR 2.101).

Mission Area. A group of agencies with related functions that report to the same Under or Assistant Secretary. (Source: USDA, DG 0100-002)

NASA-SEWP. A multi-award Indefinite Delivery Indefinite Quantity (IDIQ) Governmentwide acquisition contract managed by the National Aeronautics and Space Administration (NASA) for Federal agencies to purchase the latest commercial IT products, solutions, and services. (Source: NASA, [SEWP V](#))

Section 508 of the *Rehabilitation Act* of 1973. As amended in 1998, this law requires Federal agencies to provide individuals with disabilities equal access to electronic information and data comparable to those who do not have disabilities, unless an undue burden would be imposed on the agency. (Source: *Access Board*)

Section 508 Refresh. The Refresh harmonizes requirements with other guidelines and standards both in the U.S. and abroad. This includes standards issued by the European Commission and with the Web Content Accessibility Guidelines (WCAG), a globally recognized voluntary consensus standard for web content and ICT. (Source: *Access Board*)

Staff Office. Departmental administrative offices whose heads report to officials within the Office of the Secretary. (Source: DG 0100-002)

Web Content Accessibility Guidelines (WCAG). A detailed list of web accessibility requirements created by the World Wide Web Consortium (W3C) that improves web accessibility for people with disabilities. (Source: W3C, [Web Accessibility Initiative](#) [WAI])

APPENDIX C

AUTHORITIES AND REFERENCES

[7 CFR § 2.25](#), *Assistant Secretary for Civil Rights*

[7 CFR § 2.32](#), *Chief Information Officer*

[7 CFR § 15e](#), *Enforcement of Nondiscrimination on the Basis of Handicap in Programs or Activities Conducted by the United States Department of Agriculture*

[40 U.S.C. § 11103\(a\)](#), *Definition*

[47 U.S.C. § 255](#), *Access by Persons with Disabilities*

[48 CFR 1](#), *Federal Acquisition Regulation*

DHS, [Section 508 Trusted Tester Conformance Test Process Version 5](#)

[Federal Acquisition Regulation](#), Acquisition.gov website

GSA, [Accessibility Requirements Tool \(ART\)](#) website

GSA, [Automated Testing](#) website

GSA, [Create Accessible Digital Products](#) website

GSA, [Guide to Accessible Web Design and Development](#) website

ITI, [VPAT](#) website

NASA, [SEWP V](#) website

OMB, Circular [A-130](#), *Managing Information as a Strategic Resource*, November 30, 2020

Section 504 of the Rehabilitation Act of 1973, [29 U.S.C. § 794](#), as amended, January 3, 2022

Section 508 of the Rehabilitation Act of 1973, [29 U.S.C. § 794d](#), *Electronic and Information Technology*, September 26, 1973, as amended in 2017, January 13, 2021

U.S. Access Board, [255 Chapter 1: Application and Administration](#) website

U.S. Access Board, [508 Chapter 2: Scoping Requirements](#) website

U.S. Access Board, [Access Board](#) website

U.S. Access Board, [*Chapter 6: Support Documentation and Services*](#) website

U.S. Access Board, [*Information and Communication Technology Revised 508 Standards and 255 Guidelines*](#) website

U.S. Access Board, [*Section 508 ICT Testing Baseline*](#) website

U.S. Access Board, [*Section E202.7: Best Meets*](#) website

USDA, [*Accessibility*](#) website

USDA, [*AD-3027*](#), *USDA Program Discrimination Complaint Form*, expires May 31, 2024

USDA, [*Agriculture Acquisition Regulation \(AGAR\)*](#), Acquisition.gov website

USDA, [*AgLearn+*](#) portal

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USDA, [*DG 0100-002*](#), *USDA Departmental Directives Definitions Glossary*, September 26, 2018

USDA, [*DM 4300-001*](#), *EEO Complaint Processing Procedures*, July 20, 2001

USDA, [*DR 0100-001*](#), *Departmental Directives System*, January 4, 2018

USDA, [*DR 3130-013*](#), *Departmental Directives System*, May 24, 2021

USDA, [*DR 4030-001*](#), *Section 508 Program*, September 8, 2014

USDA, [*DR 4300-007*](#), *Processing Equal Employment Opportunity (EEO) Complaints of Discrimination*, August 4, 2021

USDA, [*DR 4330-002*](#), *Nondiscrimination in Programs and Activities Receiving Federal Financial Assistance from USDA*, July 27, 2021

USDA, [*DR 4330-003*](#), *Nondiscrimination in USDA-Conducted Programs and Activities*, October 3, 2022

USDA, OASCR, [*ETK/EEEO*](#) portal

USDA, OASCR, [*Equal Employment Opportunity Complaint Filing*](#) website

USDA, OASCR, [*Filing a Program Discrimination Complaint as a USDA Customer*](#) website

USDA, OASCR, [Program Discrimination Complaint Electronic Submission](#) portal

USDA, OCIO, [CEC Digital Workplace](#) portal

USDA, OCIO, [Section 508 Checklists](#) web page

USDA, [USDA Style Guide](#) website

W3C, [Making the Web Accessible](#) website

W3C, [WCAG 2 Overview](#) website

W3C, [Web Content Accessibility Guidelines \(WCAG\) 2.0](#), December 11, 2008

W3C, [Web Content Accessibility Guidelines \(WCAG\) 2.1](#), revised September 21, 2023

W3C, [Web Content Accessibility Guidelines \(WCAG\) 2.2](#), October 5, 2023

Workforce Investment Act of 1998, [P.L. 105-220](#), August 7, 1998

APPENDIX D

COMPLAINT DECISION TABLE

Use Cases	Next Steps	How to Submit	Point of Contact
Use Case 1: A member of the public reports a Program discrimination complaint to OASCR where Section 508 applies.	Submit a complaint to the OASCR for processing alleging discrimination.	Follow the steps provided on OASCR's Filing a Program Discrimination Complaint as a USDA Customer page.	Mail: USDA Office of the Assistant Secretary for Civil Rights, 1400 Independence Ave, SW, Stop 9410, Washington, D.C. 20250-9410 Email: program.intake@usda.gov Phone: Local area: 202-260-1026 Toll-free: 866-632-9992 Local or Federal relay: 800-877-8339 Spanish relay: 800-845-6136 Fax: 202-690-7442
Use Case 2: An employee or applicant reports an EEO discrimination complaint where Section 508 applies.	1. Contact the Mission Area, agency, or staff office EEO Counselor to initiate the informal EEO complaint process. 2. Submit a formal EEO complaint to OASCR only if the informal process does not resolve the complaint.	1. For informal complaints: All required information will be submitted directly to the assigned EEO Counselor unless otherwise specified. 2. For formal complaints: Submit via the ETK/EEO portal.	1. For informal complaints: The EEO Counselor. 2. For formal complaints mail: USDA Center for Civil Rights Enforcement, Chief, Employment Complaints Division, 1400 Independence Avenue, SW, Washington, DC 20250-9440 Email: SM.OASCR.Info@usda.gov Electronic: ETK/EEO portal

Use Cases	Next Steps	How to Submit	Point of Contact
Use Case 3: A member of the public reports nonconformant ICT without alleged discrimination.	Contact the managing Mission Area's, agency's, or staff office's Section 508 Coordinator or the USDA Section 508 Program Office.	Email: Section508-OCIO@usda.gov .	USDA Section 508 Program Office Email: Section508-OCIO@usda.gov Phone: 202-260-8777
Use Case 4: An employee reports nonconformant ICT without alleged discrimination.	Contact the managing Mission Area's, agency's, or staff office's Section 508 Coordinator or the USDA Section 508 Program Office. .	Submit a Section 508 Program Request in the CEC Digital Workplace portal and email Section508-OCIO@usda.gov .	USDA Section 508 Program Office Electronic: CEC Digital Workplace portal Email: Section508-OCIO@usda.gov Phone: 202-260-8777